FRAMEWORK SUPPLY AGREEMENT DATA SHEET

[TO BE USED ON THE SIDE OF THE SUPPLIER]

PRICE – EUR 69

TECHNICAL DATA SHEET AND TERMS OF USE

Contract description

This Framework Supply Agreement sets forth the terms applicable to the supply of Products by the Supplier to the Buyer. This Template has been created in the prospective of the Supplier: for equivalent document on the Buyer's side, kindly refer to the Master Purchase Agreement Template.

In the Template you will find:

- **Forecast, purchase order process –** 12 months' forecast, purchase orders amendments, cancellation and rescheduling.
- **Intellectual Property Rights** – Supplier will retain IPR on the Products.
- **Order, Delivery, and Risk Allocation** – Procedures for placing orders, delivery terms (INCOTERM EXW) and associated title transfer and risk of loss allocation.
- **Warranties and Liability** – allocation of product warranties, disclaimers, indemnification and limitation of liability.
- **Compliance Obligations** – Regulatory compliance, anti-corruption, export controls and data protection. The template is meant to be used worldwide so we do not refer to compliance requirements of any specific jurisdiction, although the regulations in place in USA, UK and EU are taken into consideration.
- **Confidentiality** – Protection of proprietary information
- **Term and Termination** – agreement duration, renewal conditions, termination rights (for cause or convenience), and post-termination obligations.
- **Governing Law and Dispute Resolution** – Jurisdiction and competent court. We propose ordinary court and laws. If you intend to choose the arbitration, we recommend to carefully consider the associated costs, which can vary significantly in consideration of the structure you select for the arbitration panel and of the relevant jurisdiction.
- **Exhibit:**

Exhibit A Products and Prices

Recommended use	◈ The Template is suitable to be used on the side of the Supplier, for any kind of electronic or mechanical product or device. ◈ The liability and IPR indemnity section is a mere recommendation, in line with the general practice but should be revised and adjusted as required to fit with the specific business case. ◈ All commercial and technical terms are recommendations only and based on common market practice and should be revised and edited as needed.
Composition and language	Pages (including annexes) – 14 pages. Language - English
Terms of use	The Template is original work of Zogno & Partners Ltd ("Professional") and all associated intellectual property rights and copyrights belong to the Professional exclusively. By completing the purchasing process, you will receive an editable version of the Template and are granted with a limited non-exclusive and non-transferrable and non-assignable license on the Template in order to use it, modify, implement and integrate with your own documents. You are allowed to use the template for your internal use only. Promotion, market and/or sale of the Template is strictly forbidden and will constitute infringement of the intellectual property rights of Zogno & Partners Ltd. By completing the purchasing process, you undertake and agree to comply with the General Terms and Conditions of Sale published on this website (www.legalboutiques.com)
Disclaimer	By completing the purchasing process, you acknowledge and agree that the Template is a standard document conceived as a base working draft which will require adjustments and modifications in order to suit any specific requirement and/or business case. We strongly recommend seeking legal advice with specific reference to the laws that will govern the contract. The use of the Template is entirely at your own risk. You further acknowledge that any use of this Template without specific legal advice and/or direct legal knowledge may imply or cause significant damage and you undertake to indemnify and hold harmless the Professional from any claim, cost, expenses, losses or prejudice we may suffer as a result of any use of the Template that you may make. The Template is provided "as is" and the Professional makes no warranties, express or implied, including, but not limited to, any warranty of merchantability, non-infringement or fitness for particular purpose. The buyer and the end user shall be solely responsible for the selection, amendment, use, implementation, efficiency, and suitability of the template for any intended purposes, and the Professional

shall have no liability in that respect. In no event shall the Professional be liable to buyer or end users for any damages, direct or indirect, special, or consequential arising out of or related to the use of the template. In any event, the Professional's aggregate liability shall not exceed the price paid by the buyer for the template to which the contestation relates.

PREVIEW (EXTRACT)

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1. RECITALS AND DEFINITIONS

1.1. The Recitals and Exhibits hereto form an integral part of this Agreement. The headings of the various sections in this Agreement are for convenience of reference only and may not be employed in the interpretation or construction of this Agreement.

1.2. As used in this Agreement and in the relevant Exhibits hereto, the following terms shall have the meaning assigned to them below:

- "**Affiliate**" means, with respect to a Party, all entities which control, are controlled by or are under common control with that Party, whether directly or through one or more intermediaries, where "Control" means (i) the direct or indirect ownership of more than fifty percent (50%) of the outstanding voting securities or equivalent ownership interest of an entity, or (ii) the power, whether by contract, equity ownership or otherwise, to direct or cause the direction of the management and policies of an entity, and the terms "Controlled by" and "under common Control with" shall be construed accordingly.

- "**Confidential Information**" means any and all information about Supplier or Buyer that is not Non-Proprietary Information and that may be disclosed by either Party ("**Disclosing Party**") to the other ("**Receiving Party**") in connection with this Agreement. Confidential Information may include but is not limited to information, knowledge or data of an intellectual, technical, scientific, commercial, industrial, financial, cost, pricing, or marketing nature relating to the business of the Disclosing Party including the terms and conditions of this Agreement.

- "**Customer(s)**" means buyers, end users and any other third party purchasing the Products from the Buyer, as a stand-alone or embedded into the Buyer's products and solutions.

- **"Delivery Date**" means the date of delivery of the products specifically agreed upon in the Purchase Order issued by the Buyer and confirmed by the Supplier.

- **"Effective Date"** means the date when this Agreement will be signed by both Parties.

- **"Forecast"** has the meaning ascribed to it in Section 2.1 hereto.

- "**Intellectual Property Rights**" or "**IP Rights**" means any (i) ideas, inventions, discoveries, designs, specifications, software, devices, techniques, methods or processes (whether or not patentable or reduced to practice) and related patents and patent applications and reissues, re-examinations, renewals, continuations-in-part, continuations, and divisions thereof, rights to inventions, (ii) utility models, (iii) copyright and related rights including related registrations and applications for registration, (iv) trademarks, service marks, trade, business and domain names, moral rights, rights in confidential information (including know-how and trade secrets) and any other intellectual property rights, and (v) improvements, updates and modifications of the foregoing made from time to time, in each case whether registered or unregistered and including

all applications for and renewals or extensions of such rights, and all similar or equivalent rights or forms of protection in any part of the world.

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2. PURCHASE OF PRODUCTS

2.1. Forecast. To enable Supplier to fulfill demand for the Products, every month, on the fifth (5th) day of that month (or the next business day if such day is not a business day), Buyer will provide to Supplier a rolling twelve (12) month purchase forecast, starting from the following month ("**Forecast**"). Such forecast shall include expected purchase quantities per month, for each type of Product. If the most recent forecast becomes materially inaccurate at any time, the Buyer shall promptly provide Supplier with updated information. The Forecast is non-binding and for planning purposes only, and Supplier shall have no liability for its inability to fulfill orders that exceed or deviate materially from the Forecast. Notwithstanding the foregoing, Buyer's failure to provide the Forecast by the specified date shall not constitute a breach of this Agreement, but Supplier may adjust Lead Times accordingly.

2.2. Purchase Orders. Buyer's purchase orders may be issued in writing, by mail or by electronic means as the Parties may from time to time agree and shall comply with the applicable Lead Time, MOQ and all the other terms of this Agreement. The manner of acceptance of purchase orders shall be solely by Supplier's express written acceptance to a specific purchase order, which shall be provided within ten (10) Business Days of receipt of the purchase order. Any purchase order can be accepted with or without modifications, provided that any modifications shall be clearly communicated to Buyer in the acceptance. Until such express written acceptance is provided to the Buyer, Supplier shall have no obligation to the Buyer. If Supplier does not respond within the specified timeframe, the purchase order shall be deemed rejected. The Parties agree that the terms and conditions contained in this Agreement shall prevail over any terms and conditions of any purchase order, acknowledgment form or other instrument. Any terms and conditions of the Buyer added to the purchase order or referenced therein shall be disregarded. Buyer acknowledges that, after the acceptance, purchase orders cannot be cancelled or rescheduled without the Supplier's prior written consent, and any such cancellation or rescheduling shall be subject to the terms of Section 2.4. Nothing in this Agreement constitutes an obligation for the Supplier to accept or confirm purchase orders or delivery dates.

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5. WARRANTY

5.1. Supplier warrants that for a period of 12 months from the date of delivery to Buyer ("**Warranty Period**"), the Products shall conform to the Specifications and shall be free of defects in material and workmanship under normal use ("**Warranty**"). This warranty is only for the benefit of the Buyer and is not transferable. Buyer may provide its own warranties directly to any of its

Customers. However, Buyer is not allowed to pass through to Customers the warranties made by Supplier under this Agreement, except to the extent required by applicable mandatory consumer protection laws. Furthermore, Buyer will not make any representations to Customers on behalf of Supplier, and Buyer will expressly indicate in writing in its agreements with Customers that they must look solely to Buyer in connection with any problems, warranty claims or other matters concerning the Products.

5.2. Subject to mandatory statutory warranty rights under the applicable law that cannot be limited, the sole responsibility of Supplier and Buyer's sole remedy under this warranty shall be, at Supplier's option, to repair or replace the defective Products within a reasonable timeframe (or if repair or replacement is not reasonably possible or not completed within two (2) attempts or sixty (60) days, whichever occurs first, Buyer may elect to receive a refund of the purchase price paid for such defective Products or a price reduction), during the Warranty Period. Supplier's warranty obligations apply exclusively to the Products as supplied and do not extend to any finished product, assemblies, or Customers' products incorporating the Products. Buyer assumes all liability and warranty obligations for finished products, assembly quality, end-user warranties, and any claims arising from Buyer's assembly, finishing, resale, or use of the Products. Subject to any applicable statutory warranties under applicable law that cannot be disclaimed, Supplier expressly disclaims all other representations and warranties of any kind, express or implied.

5.3. Supplier is not responsible for solving any problems that are not inherent in the Products, including, but not limited to problems rooted in (a) Buyer's assembly, finishing, or integration processes; (b) Buyer's other hardware, software, components, or materials to which the Products are integrated or combined; (c) the design or performance of any finished products incorporating the Products; (d) Buyer's quality control, testing, or manufacturing processes; or (e) any end-use application or environment in which the Products or finished products incorporating the Products are used. Supplier's warranty does not include onsite support for the Products. If onsite support is required to be performed by a Supplier's authorized representative, additional charges, including but not limited to, hourly labor, travel, meals, lodging, and related expenses shall apply.

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10. CONFIDENTIALITY

10.1. The Receiving Party shall (i) not use, copy, or allow others access to any Confidential Information and shall not disclose or transfer Confidential Information to any employees or to any third parties, excepting those who are authorized and have a need to know; and (ii) employ diligent efforts and exercise reasonable care to hold all Confidential Information in the strictest confidence after receipt of same, but no less than the same level of care it uses to safeguard its own Confidential Information.

10.2. The obligations in regard to Confidential Information shall not restrict the Receiving Party from any disclosure required by applicable law or by order of any Court or government agency provided that - to the extent allowed under applicable law - the Receiving Party shall give such notice to

the Disclosing Party as may be reasonable in the circumstances so that the Disclosing Party can take appropriate action to protect its proprietary interests in the Confidential Information and to prevent improper disclosure of same.

10.3. The obligations regarding confidentiality shall be binding on the Receiving Party during the Term and for a period of five (5) years from the date of termination of this Agreement. Receiving Party shall not disclose Confidential Information to any person or entity except in accordance with the terms of this Agreement.

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14. MISCELLANEOUS.

14.1 Entire Agreement. The Parties acknowledge that this Agreement expresses their entire understanding and agreement, and that there have been no warranties, representations, covenants or understandings made by either party to the other except such as are expressly set forth herein. The Parties further acknowledge that this Agreement supersedes, terminates and otherwise renders null and void any and all prior agreements, or contracts, whether written or oral, entered into between Supplier and Buyer with respect to the matters hereinabove expressly set forth. Any amendment or supplement to this Agreement shall effective only if in writing signed by each of the Parties.

14.2 Waiver. No delay or omission to exercise any right, power, or remedy accruing to any party upon any breach or default under this Agreement, shall be deemed a waiver of any other breach or default theretofore or thereafter occurring.

14.3 Assignability. Buyer shall not assign or otherwise transfer this Agreement or any interest herein or any right hereunder without the prior written consent of Supplier. Any such purported assignment, transfer or attempt to assign or transfer any interest herein, or right hereunder by Buyer, without the prior written consent of Supplier, shall be null, void and of no effect. Supplier is entitled to extend or to assign this Agreement as well as any right and obligation hereunder to any other company belonging to the Supplier Group, even without the approval of the Buyer.

14.4 Independent Contractor. Buyer is an independent contractor and neither has nor will have any power, right or authority to bind Supplier, or to assume or to create any obligation or responsibility, expressed or implied, on behalf of Supplier. Nothing contained in this Agreement will be construed as constituting Buyer and Supplier as partners or joint ventures, or as creating the relationship of employer and employee, as principal and agent or otherwise create any other relationship other than that of a seller and a purchaser as set out in this Agreement.

14.5 Severability. If any provision of this Agreement is held to be illegal, invalid or unenforceable for any reason, the remaining provisions shall continue in full force and effect, and the parties agree to replace such illegal, invalid or unenforceable provision with a legal, valid and enforceable provision that most closely approximates the intent and economic effect of such illegal, invalid or unenforceable provision.

14.6 Governing Law and Venue. This Agreement shall in all respects be governed by and construed in accordance with the laws of the country where the Supplier has its registered office, without regard to conflicts of laws provisions and without regard to the United Nations Convention on Contracts for the International Sale of Goods. The sole and exclusive jurisdiction for all disputes arising from this

Agreement shall be the Court of the place where the Supplier has its registered office and each party hereby irrevocably submits to such jurisdiction. However Supplier reserves the right to commence a legal action in front of the Court of the Buyer, if it deems appropriate to do so.

14.7 Notices. All notices and other communications required or permitted hereunder to be given to a party to this Agreement shall be in writing and shall be sent by registered mail with return receipt or certified e-mail or delivered by hand, addressed to such party's address as set forth herein or at such other address as the party shall have furnished to each other party in writing in accordance with this provision. Any notice sent in accordance herewith shall be effective (i) if sent by registered mail with return receipt, upon delivery as evidenced by the return receipt, (ii) if sent by certified e-mail (PEC), upon transmission and electronic confirmation of receipt, and (iii) if delivered by hand, upon receipt acknowledged in writing by the receiving party.

14.8 Counterparts. This Agreement may be executed in one (1) or more counterparts, all of which when taken together shall be deemed one and the same instrument.

14.9 Force Majeure. Neither Party will be liable for any failure to perform any obligations undertaken hereunder due to unforeseen circumstances or causes beyond reasonable control, including, but not limited to, acts of God, war, riot, embargoes, acts of civil or military authorities, earthquakes, fire, flood and pandemics. Time for performance of delivery obligations will be extended by the duration of the Force Majeure event. In the event that the delay or non-performance of either Party hereto continues for a period of sixty (60) days due to events of Force Majeure, then the other Party shall have the right to terminate this Agreement or the affected purchase order with immediate effect without liability towards the other Party. The Party subject to the Force Majeure event shall promptly notify the other Party in writing of the occurrence and expected duration of the Force Majeure event, and shall resume the performance of its obligations as soon as reasonably possible after the Force Majeure event shall have ceased, but shall exercise commercially reasonable efforts to perform its obligations hereunder notwithstanding such Force Majeure event.

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